

LAW & MOTION CALENDAR
TENTATIVE RULINGS

July 10, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Silvestri vs. Upward Projects Holdings, LLC 2024-01380452	Plaintiff’s Unopposed Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to September 4, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before August 24, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Please provide copies of all pre-filing letters, both original and amended, that Plaintiff sent to the LWDA. 2. The class and PAGA periods end on “December 31, 2024, or, at the option of Defendant, any later date on or before the date the court grants preliminary approval of the Settlement, subject to the escalator provision in Paragraph 50 below.” This appears to give Defendant the option to set a <i>longer</i> class period if it wants. Is this

		really what the parties intended? How is this permissible? How can the parties value claims for a unknown period looking forward? 3. Please provide 60 days, rather than 45, for opt-outs, objections and workweek disputes. 4. Counsel states that many class members signed arbitration agreements with class waivers. Did Plaintiff sign one? 5. Plaintiff worked as a server. Is he typical of back-of-house workers? In this regard, the off-the-clock work claims are based on time spent splitting tips while clocked out. 6. What documents and data did Defendant turn over prior to mediation? There are fleeting references to record samples and policies in counsel’s declaration. 7. Did counsel interview anyone other than Plaintiff to value non-record claims? 8. Was an expert retained to assist in valuation? If so, please provide a CV. 9. Counsel states that the possibility of a <i>Pick Up Stix</i> campaign figured into his valuation of the case. Was a <i>Pick Up Stix</i> campaign in fact threatened by Defendant? 10. Did Defendant indeed <i>require</i> employees to be clocked out while splitting tips, either as a formal written policy or as an oral directive from management? 11. Did Defendant turn over sample meal break waivers? In counsel’s opinion, were the waivers compliant with applicable law and regulation? 12. Counsel’s claim valuation appears to omit the following claims: biweekly pay, vested vacation pay, reimbursement, wage statements, and UCL. The Court will not approve the release of any claims that aren’t separately valued.
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